

Employee Termination Policy

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The Employee Termination Policy sets forth the guidelines, procedures, and conditions under which employment may be terminated at Inmind.ai, in strict adherence to Lebanese Labour Law. This policy ensures that terminations are conducted fairly, transparently, and in compliance with all legal obligations to protect the rights of both the company and its employees. Termination of employment can occur under the following circumstances: resignation, redundancy, misconduct, or performance-related issues. The specific procedures, eligibility criteria, timelines, exceptions, and responsibilities for each type of termination are outlined below.

1. Resignation:

Employees who choose to resign from their position must provide formal written notice to the company, as stipulated in their employment contract. The notice period will typically range from one to three months, depending on the employee's role, seniority, and contract terms. During the notice period, the employee is expected to fulfill all work-related responsibilities and assist in the smooth transition of their duties. Failure to adhere to the notice period may result in forfeiture of certain benefits, such as end-of-service indemnities, unless the employee can demonstrate exceptional circumstances (e.g., medical emergencies or relocation).

Employee Responsibilities:

- Submit a signed resignation letter to the HR department, specifying the intended last working day.
- Cooperate with management to ensure a proper handover of responsibilities.
- Return all company property, including equipment, documents, and access credentials, before the final day of employment.

Employer Responsibilities:

- Acknowledge receipt of the resignation letter in writing.
- Facilitate the handover process to minimize disruption to business operations.
- Process final settlements, including any outstanding salary, unused leave, and end-of-service indemnity, within a maximum of 30 days from the employee's last working day.

2. Redundancy:

Employment may be terminated due to redundancy if the company undergoes structural changes, financial challenges, or operational downsizing. In such cases, the company will follow a transparent process to identify affected roles and provide employees with adequate notice and compensation as required by Lebanese Labour Law.

Eligibility Criteria:

- Redundancy will only apply to roles that are no longer required or viable due to business needs.
- Employees with longer tenures and higher contributions may be prioritized for retention, where applicable.

Procedures:

- A minimum notice period of one month will be provided to affected employees, or as otherwise stipulated in their employment contracts.
- Eligible employees will receive severance pay calculated based on their years of service, in accordance with Article 50 of the Lebanese Labour Law.
- Employees will be offered support services, such as outplacement assistance, where feasible.

Employer Responsibilities:

- Provide written notification of redundancy, specifying reasons and effective dates.
- Ensure compliance with legal severance requirements and timely processing of payments.
- Communicate openly and transparently to address employee concerns.

3. Misconduct:

Termination due to misconduct will only occur following a thorough investigation and due process to ensure fairness. Misconduct may include, but is not limited to, theft, harassment, violence, or willful violation of company policies.

Procedures:

- The company will initiate a formal investigation upon receiving a complaint or identifying potential misconduct.
- The employee in question will be notified in writing and given an opportunity to respond to the allegations.
- A disciplinary hearing may be conducted to review evidence and statements from all parties involved.
- A final decision will be communicated to the employee in writing, along with the rationale for termination if applicable.

Exceptions:

- Immediate termination without notice may occur in cases of gross misconduct, as defined under Article 74 of the Lebanese Labour Law.

Employee Responsibilities:

- Provide truthful information during the investigation process.
- Abide by company policies and the terms of their employment contract.

Employer Responsibilities:

- Conduct a fair, impartial, and confidential investigation.
- Maintain detailed documentation of the investigation process and decisions made.
- Ensure compliance with legal requirements for termination due to misconduct.

4. Performance-Related Termination:

Termination due to performance issues will only occur after the employee has been given adequate opportunities to improve. This includes documented feedback, performance evaluations, and the implementation of a Performance Improvement Plan (PIP).

Procedures:

- Supervisors will provide written warnings outlining specific performance concerns and expectations for improvement.
- If concerns persist, a PIP will be initiated, specifying measurable goals and a timeline for achieving them (typically 30 to 90 days).
- Regular check-ins will be scheduled to track progress and provide guidance.
- If performance remains unsatisfactory after the PIP period, termination may be initiated in accordance with the employee's contract and Lebanese Labour Law.

Employee Responsibilities:

- Actively participate in the PIP process and work towards achieving outlined goals.
- Seek clarification or support from supervisors if needed.

Employer Responsibilities:

- Provide clear, constructive feedback and support throughout the PIP process.
- Document all warnings, evaluations, and improvement plans.
- Ensure performance-related terminations are conducted fairly and in compliance with legal standards.

5. Final Settlement and Return of Company Property:

Upon termination, employees are required to return all company property, including laptops, access cards, and confidential documents. Final settlements, including unused leave balances, end-of-service indemnities, and any outstanding salary, will be processed within a maximum of 30 days from the official termination date.

Compliance Notes:

- The company strictly adheres to the provisions of the Lebanese Labour Law, including Articles 47-50, which govern notice periods, severance pay, and termination procedures.
- Employees and managers are encouraged to consult the HR department for clarification on any aspect of this policy.
- Non-compliance with this policy by either party may result in legal action or penalties as prescribed by law.

By adhering to this policy, Inmind.ai aims to maintain fairness, transparency, and legal compliance in all termination-related decisions and processes.